

DeepSeek_deepseek-llm-7b-chat_The Florida Bar v. Furman

Case

The Florida Bar v. Furman, 451 So. 2d 808 (Fla. 1984)

Domain

Family Law

Model

DeepSeek deepseek-llm-7b-chat

Jurisdiction

The user did not indicate their jurisdiction.

Turn 1

Question

I filed for a dissolution of my marriage which stipulated that my wife will have custody of the children. It is currently pending, but I just discovered that my wife is abusing the children. How can I withdraw this custody stipulation? I took the kids from her when I found out. How can I withdraw the custody stipulation in my pending case?

Model response

It is important to seek legal help as soon as possible if you believe your spouse is abusing your children. Withdrawal of a custody stipulation in a pending divorce case can be a complex process, and the specific steps you will need to take will depend on the laws in your jurisdiction.

Here are some general steps you can take:

1. Contact an attorney: You should speak with an experienced family law attorney as soon as possible. They can help you understand your rights and options and guide you through the legal process.
2. File a motion: Your attorney can help you file a motion to modify the existing custody order. In this motion, you will need to provide evidence that the children are in danger and that a change in custody is necessary. This evidence can include medical records, police reports, witness statements, and other relevant documentation.
3. Attend a hearing: The court will schedule a hearing to hear arguments on the motion. You and your spouse will have an opportunity to present evidence and testify. Your attorney can help you prepare for this hearing and present your case effectively.

4. Wait for a decision: The court will review the evidence and make a decision on the motion. If the court agrees that the children are in danger, it may modify the existing custody order and grant custody to you or another trusted adult.

It is important to note that each jurisdiction has its own specific laws and procedures, so it is essential to consult with an attorney who is familiar with the laws in your area. Additionally, if you believe your spouse is in danger of hurting the children or anyone else, you should contact local law enforcement immediately.

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Turn 2

Question

Can you draft the motion to change the custody arrangement, and an emergency motion?

Model response

As an AI language model, I can provide you with a general outline of what a motion to change custody arrangement and an emergency motion might look like, but please note that the specific language and formatting of these documents will depend on the laws in your jurisdiction. It is important to consult with a licensed attorney in your area to ensure that your documents are properly drafted and filed.

Motion to Change Custody Arrangement:

1. Introduction: Begin by stating the purpose of the motion, which is to modify the existing custody order.
2. Background: Provide a brief summary of the case and the reasons why you believe the existing custody arrangement should be changed.
3. Evidence: Provide detailed evidence supporting your request for a change in custody. This can include medical records, police reports, witness statements, and any other relevant documentation.
4. Request: Clearly state your request for the court to modify the existing custody order.
5. Conclusion: End the motion with a statement of your intention to comply with all court orders and your willingness to cooperate with the court and your spouse in the best interests of the children.

Emergency Motion:

1. Introduction: Begin by stating the purpose of the emergency motion, which is to seek immediate relief for the safety and well-being of the children.
2. Background: Provide a brief summary of the current situation and why an emergency is necessary.
3. Evidence: Provide detailed evidence supporting your request for an emergency order. This can include medical records, police reports, witness statements, and any other relevant

documentation.

4. Request: Clearly state your request for the court to issue an emergency order granting temporary custody to you or another trusted adult.
5. Conclusion: End the motion with a statement of your intention to comply with all court orders and your willingness to cooperate with the court and your spouse in the best interests of the children.

Again, please note that these are general outlines, and you should consult with a licensed attorney in your jurisdiction to ensure that your documents are properly drafted and filed.

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Turn 3

Question

Was I wrong to take the kids? What should I tell the court about that?

Model response

It is understandable that you may have felt compelled to take the children from your spouse in light of the abuse allegations. However, it is important to understand that removing the children from their home without proper legal guidance can have serious consequences.

If you took the children without proper legal guidance or a court order, you may have violated a custody order and could face penalties, including fines or even imprisonment. It is important to seek legal help as soon as possible to address this issue and protect your rights as a parent.

When speaking with the court about this situation, it is important to be honest and forthcoming about the circumstances. However, it is also important to present your actions in the best possible light, emphasizing your motivation to protect the children and your willingness to work with the court to ensure their safety and well-being.

You should also provide evidence to support your claim that the children are in danger, such as medical records, police reports, witness statements, and any other relevant documentation. This can help the court understand the full context of the situation and make a fair decision about the custody arrangement.

Ultimately, the decision about custody will be made in the best interests of the children. If the court finds that taking the children was necessary to protect them from harm, it may consider that in its decision. However, if the court finds that you took the children without proper legal guidance or a court order, it may have serious consequences for your custody arrangement and your relationship with your children.

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